

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

WASHINGTON CHANGES – LIQUOR LIABILITY

This endorsement modifies insurance provided under the following:

LIQUOR LIABILITY COVERAGE ENDORSEMENT EG 80 33

The following provisions are added with respect to the insurance provided by the Liquor Liability Coverage endorsement.

- A. Exclusion c. Employer's Liability** in paragraph 2. **Exclusions** under **COVERAGE D – LIQUOR LIABILITY (SECTION I – COVERAGES)** as found in the LIQUOR LIABILITY COVERAGE ENDORSEMENT applies only to "injury" to any "employee" of the insured whose employment is not subject to the Industrial Insurance Act of Washington (Washington Revised Code Title 51).

With respect to "injury" to "employees" of the insured whose employment is subject to the Industrial Insurance Act of Washington (Washington Revised Code Title 51), exclusion **c. Employer's Liability** is replaced with the following:

c. Employer's Liability

- (1) "Bodily injury" to an "employee" of the insured arising out of and in the course of:
- (a) Employment by the insured; or
 - (b) Performing duties related to the conduct of the insured's business; or
- (2) Any obligation to share damages with or repay someone else who must pay damages because of the injury.

This exclusion does not apply to liability assumed by the insured under an "insured contract".

- B. Subparagraphs 2.a.(1)(a), (b) and (c) under paragraph D. (SECTION II - WHO IS AN INSURED)** as found in the LIQUOR LIABILITY COVERAGE ENDORSEMENT apply only to "employees" of the insured whose employment is not subject to the Industrial Insurance Act of Washington (Washington Revised Code Title 51).

With respect to "employees" of the insured whose employment is subject to the Industrial Insurance Act of Washington (Washington Revised Code Title 51), subparagraphs **2.a.(1)(a), (b) and (c)** under paragraph **D. (SECTION II - WHO IS AN INSURED)** as found in the LIQUOR LIABILITY COVERAGE ENDORSEMENT are replaced with the following:

However, none of these "employees" is an insured for:

(1) "Injury":

- (a) To you, to your partners or members (if you are a partnership or joint venture), to your members (if you are a limited liability company), or to a co-"employee" while that co- "employee" is either in the course of his or her employment or performing duties related to the conduct of your business;
- (b) For which there is any obligation to share damages with or repay someone else who must pay damages because of the injury described in paragraph **2.a.(1)(a)** above.

